

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

Purchased:

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YADULLAHI MUHAMMAD which the NYPD
misspelled MUTAR MOHAMMED,
Plaintiff,

Plaintiff designates

Bronx County as the place of trial

-against-

The basis of the venue is where the
tort arose

CITY OF NEW YORK, individually and officially in their
capacities as New York City Police Officers, MITCHELL
GEIST, EDWARD GASTON, ANTHONY DISIMONE,
THOMAS FARRELL, RAMON REYES, ANTHONY
BATISTA, SHELDON SMITH, RICHARD GREEN,
DANIEL TALLEYRAND, AMADEO OKTROVA,
THOMAS WARKENTHEIN and JOHN or JANE DOE 1-
10,

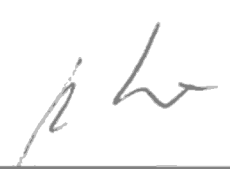
SUMMONS

Defendants.
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TO THE ABOVE-NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
December 30, 2019



SIM & DEPAOLA, LLP

BY: *Peter Sim, Esq.*

Attorneys for Plaintiff(s)

42-40 Bell Boulevard Suite 500

Bayside, New York 11361

(718) 281-0400

TO: CORPORATION COUNSEL OF THE
CITY OF NEW YORK
100 Church Street
New York, New York 10007

DET. MITCHELL GEIST
Shield #6934, Tax ID #904014
At Bronx Homicide Squad
1 Police Plaza, Room 110C
New York, New York 10038

PO EDWARD GASTON
Shield #4616, Tax ID #952767
At Strategic Response Group 2
1 Police Plaza, Room 110C
New York, New York 10038

DET. ANTHONY DISIMONE
Shield #340, Tax ID #918874
At Narcotics Borough of Bronx
1 Police Plaza, Room 110C
New York, New York 10038

PO THOMAS FARRELL
Shield #4505
At 42nd Precinct
830 Washington Avenue
Bronx, New York 10451

Sgt. RAMON REYES
Shield #3998, Tax ID #947395
At 25th Precinct
120 E. 119th Street
New York, New York 10035

DET. ANTHONY BATISTA
Shield #16277, Tax ID #946496
At 42nd Precinct Detective Squad
830 Washington Avenue
Bronx, New York 10451

DET. SHELDON SMITH
Shield #3024, Tax ID #933584
At 52nd Precinct Detective Squad
3016 Webster Avenue
Bronx, New York 10467

DET. RICHARD GREEN
Shield #6592, Tax ID #932741
At Technical Assistant Response Unit
610 Little Bay Road
FT. Totten, New York 11359

LT. DANIEL TALLYERAND
Tax ID #947531
At 48th Precinct
450 Cross Bronx Expressway
Bronx, New York 10457

PO AMADEO OKTROVA
Shield #26126, Tax ID #949413
At 48th Precinct
450 Cross Bronx Expressway
Bronx, New York 10457

DET. THOMAS WARKENTHEIN
Shield # 3876, Tax ID 949785
At Bronx Warrant Squad
1 Police Plaza, Room 110C
New York, New York 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
YADULLAHI MUHAMMAD which the NYPD
misspelled MUTAR MOHAMMED,

Index No.:

Plaintiff,

-against-

VERIFIED COMPLAINT

CITY OF NEW YORK, individually and officially in their capacities as New York City Police Officers, MITCHELL GEIST, EDWARD GASTON, ANTHONY DISMONE, THOMAS FARRELL, RAMON REYES, ANTHONY BATISTA, SHELDON SMITH, RICHARD GREEN, DANIEL TALLEYRAND, AMADEO OKTROVA, THOMAS WARKENTHEIN and JOHN or JANE DOE 1-10,

Defendants.

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Plaintiff, YADULLAHI MUHAMMAD, by his attorneys, Sim & DePaola, LLP,
for his complaint against the above Defendants, alleges as follows:

1. The claim arises from an April 8, 2014 incident, in which Defendants, acting under color of state law, unlawfully seized, searched, detained and arrested YADULLAHI MUHAMMAD which the NYPD misspelled "MUTAR MOHAMMAD." Plaintiff was subsequently charged with three (3) counts of Criminal Conspiracy in the First Degree, three (3) counts of Criminal Conspiracy in the Second Degree, one count of Criminal Conspiracy in the Third Degree, one (1) count of Criminal Conspiracy in the Fourth Degree. As a result, Mr. Montgomery suffered serious physical and psychological injuries. Mr. Muhammed was maliciously prosecuted for said incident from the date of arraignment until the dismissal of

charges on October 2, 2018 by the Hon. H. Barrett of the Bronx County Supreme Court.

2. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper.

PARTIES

3. Plaintiff Yadullahi Muhammad ("Plaintiff") resides at 2111 Southern Boulevard, Apartment #4B, Bronx County, State of New York.
4. The Defendant City of New York (or "the City") is a municipal corporation organized under the laws of the State of New York.
5. At all times relevant hereto, Defendant City, acting through the New York City Police Department (or "NYPD") was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives and supervisory officers as well as the individually named Defendants herein.
6. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.
7. Defendant Mitchell Geist ("Geist") was, at all times here relevant, a police officer and/or detective employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Geist was, at all times relevant herein, a Police Officer and/or Detective under Shield No. 6934, Tax

Reg. No. 904014, of Bronx Homicide Bureau, at 1 Police Plaza, Room 110 C, New York 10038. Defendant Geist is being sued in his individual and official capacities.

8. Defendant Edward Gaston ("Gaston") was, at all times here relevant, a police officer and/or detective employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Gaston was, at all times relevant herein, a Police Officer and/or Detective under Shield No. 4616, Tax Reg. No. 952767, of Strategic Response Group 2, at 1 Police Plaza, Room 110 C, New York 10038. Defendant Gaston is being sued in his individual and official capacities.
9. Defendant Anthony Disimone ("Disimone") was, at all times here relevant, a police officer and/or detective employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Disimone was, at all times relevant herein, a Police Officer and/or Detective under Shield No. 340, Tax Reg. No. 918874, of Bronx Narcotics Bureau, at 1 Police Plaza, Room 110 C, New York 10038. Defendant Disimone is being sued in his individual and official capacities.
10. Defendant Thomas Farrell ("Farrell") was, at all times here relevant, a police officer and/or detective employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Farrell was, at all times relevant herein, a Police Officer and/or Detective under Shield No. 4504, of 42nd Precinct, at 1 Police Plaza, Room 110 C, New York 10038. Defendant Farrell is being sued in his individual and official capacities.

11. Defendant Ramon Reyes (“Reyes”) was, at all times here relevant, a police officer and/or detective employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Reyes was, at all times relevant herein, a Police Officer and/or Detective under Shield No. 3938, Tax Reg. No. 947395, of the 25th Precinct, at 1 Police Plaza, Room 110 C, New York 10038. Defendant Reyes is being sued in his individual and official capacities.
12. Defendant Anthony Batista (“Batista”) was, at all times here relevant, a police officer and/or detective employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Batista was, at all times relevant herein, a Police Officer and/or Detective under Shield No. 16277, Tax Reg. No. 946496, of the 42nd Precinct Detective Squad, at 830 Washington Avenue, Bronx, New York 10451. Defendant Batista is being sued in his individual and official capacities.
13. Defendant Sheldon Smith (“Smith”) was, at all times here relevant, a police officer and/or detective employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Smith was, at all times relevant herein, a Police Officer and/or Detective under Shield No. 3024, Tax Reg. No. 933584, of the 52nd Precinct Detective Squad, at 3016 Webster Avenue, Bronx, New York 10467. Defendant Smith is being sued in his individual and official capacities.
14. Defendant Richard Green (“Green”) was, at all times here relevant, a police officer and/or detective employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant

Green was, at all times relevant herein, a Police Officer and/or Detective under Shield No. 6592, Tax Reg. No. 932741, of the Technical Assistant Response Unit, at 610 Little Bay Road, Ft. Totten, New York 11359. Defendant Green is being sued in his individual and official capacities.

15. Defendant Daniel Talleyrand (“Talleyrand”) was, at all times here relevant, a police officer and/or detective employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Talleyrand was, at all times relevant herein, a Police Officer and/or Detective under Tax Reg. No. 947531, of the 48th Precinct, at 1 Police Plaza, Room 110 C, New York 10038. Defendant Talleyrand is being sued in his individual and official capacities.
16. Defendant Amadeo Oktrova (“Oktrova”) was, at all times here relevant, a police officer and/or detective employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Oktrova was, at all times relevant herein, a Police Officer and/or Detective under Shield No. 26126, Tax Reg. No. 949413, of the 48th Precinct, at 1 Police Plaza, Room 110 C, New York 10038. Defendant Oktrova is being sued in his individual and official capacities.
17. Defendant Thomas Warkenthein (“Warkenthein”) was, at all times here relevant, a police officer and/or detective employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Warkenthein was, at all times relevant herein, a Police Officer and/or Detective under Shield No. 3876, Tax Reg. No. 948785, of Bronx Homicide Bureau, at 1 Police Plaza,

Room 110 C, New York 10038. Defendant Warkenthein is being sued in his individual and official capacities.

18. At all times relevant herein, Defendants John or Jane Doe 1 through 10 were police officers, detectives, supervisors, policy makers and/or officials employed by the NYPD. At this time, Plaintiff does not know the true names and/or tax registry numbers of Defendants John or Jane Doe 1 through 10, as such knowledge is within the exclusive possession of Defendants.
19. At all times relevant herein, Defendants John or Jane Doe 1 through 10 were acting as agents, servants and employees of the City of New York, the NYPD. Defendants John or Jane Doe 1 through 10 are being sued in their individual and official capacities.
20. At all times here mentioned, Defendants, including GEIST, GASTON, DISIMONE, FARRELL, REYES, BATISTA, SMITH, GREEN, TALLYERAND, OKTROVA, WARKENTHEIN and John or Jane Doe 1 through 10, were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.
21. Within 90 days of accrual dates for these claims, Plaintiff timely filed a written notice of claim with the New York City Office of the Comptroller.
22. Over 30 days have elapsed since the filing of those notices, and this matter has not been settled or otherwise disposed of.
23. Plaintiff has complied with municipal Defendant's request for an oral examination pursuant to Section 50-H of the New York General Municipal Law.

24. This action has been commenced within one year and ninety days from the relevant accrual dates.

FACTUAL CHARGES

25. On April 8, 2014, at approximately 5:00 a.m., Plaintiff was at home sleeping with his family, at 211 Southern Boulevard, 4B, Bronx, NY, when Defendants, including GEIST, GASTON, DISIMONE, FARRELL, REYES, BATISTA, SMITH, GREEN, TALLYERAND, OKTROVA, WARKENTHEIN and John or Jane Doe 1 through 10 knocked on their door.
26. On said date and time Defendants, GEIST, GASTON, DISIMONE, FARRELL, REYES, BATISTA, SMITH, GREEN, TALLYERAND, OKTROVA, WARKENTHEIN and John or Jane Doe 1 through 10, claimed they had a warrant for an individual named "Mutar Mohammed."
27. At no time has Plaintiff ever gone by or used the name Mutar Mohammed.
28. Plaintiff's girlfriend opened the door to tell Defendants including GEIST, GASTON, DISIMONE, FARRELL, REYES, BATISTA, SMITH, GREEN, TALLYERAND, OKTROVA, WARKENTHEIN and John or Jane Doe 1 through 10, that nobody named "Mutar Mohammed" lived at that location.
29. Defendants including GEIST, GASTON, DISIMONE, FARRELL, REYES, BATISTA, SMITH, GREEN, TALLYERAND, OKTROVA, WARKENTHEIN and John or Jane Doe 1 through 10, aggressively pushed their way into the apartment, with their guns drawn and pointed at Plaintiff without probable cause.
30. Plaintiff was forced to the ground at gun point by Defendants, including GEIST, GASTON, DISIMONE, FARRELL, REYES, BATISTA, SMITH, GREEN,

- TALLYERAND, OKTROVA, WARKENTHEIN and John or Jane Doe 1 through 1-10.
31. Defendants', including GEIST, GASTON, DISIMONE, FARRELL, REYES, BATISTA, SMITH, GREEN, TALLYERAND, OKTROVA, WARKENTHEIN and John or Jane Doe 1 through 10, searched Plaintiff's person without probable cause or reasonable suspicion to believe he was Mutar Mohammad or that he had committed a crime or violation of the law.
32. Defendants', including GEIST, GASTON, DISIMONE, FARRELL, REYES, BATISTA, SMITH, GREEN, TALLYERAND, OKTROVA, WARKENTHEIN and John or Jane Doe 1 through 10, rear handcuffed Plaintiff, extremely tightly, causing substantial pain and injury to his wrists and hands.
33. Defendants', including GEIST, GASTON, DISIMONE, FARRELL, REYES, BATISTA, SMITH, GREEN, TALLYERAND, OKTROVA, WARKENTHEIN and John or Jane Doe 1 through 10, took Plaintiff to a local NYPD precinct even though they knew his name was not Mutar Mohammad.
34. Mr. Mohammad was taken to a police precinct where he was subjected to a strip search with cavity inspection without probable cause or reasonable suspicion to believe he secreted contraband on his person.
35. Plaintiff was held in a cell at the precinct for approximately four (4) days before he was informed by Defendants, including GEIST, GASTON, DISIMONE, FARRELL, REYES, BATISTA, SMITH, GREEN, TALLYERAND, OKTROVA, WARKENTHEIN and John or Jane Doe 1 through 10 that he had been indicted by the Grand Jury for one (1) counts of Criminal Conspiracy in the First Degree, to

commit the crime of Criminal Sale of a Controlled Substance in the Second Degree; one (1) count of Criminal Conspiracy in the First Degree to commit the crime of Murder in the Second Degree; one (1) count of Criminal Conspiracy in the First Degree to commit the crime of Criminal Possession of a Controlled Substance in the Second Degree; one (1) count of Criminal Conspiracy in the Second Degree to commit the crime of Criminal Possession of a Controlled Substance; one (1) count of Criminal Conspiracy in the Second Degree to commit the crime of Murder in the Second Degree; one (1) count of Criminal Conspiracy in the Second Degree to commit the crime of Criminal Sale of a Controlled Substance; one (1) count of Criminal Conspiracy in the Third Degree to commit the Crime of Robbery in the Second Degree; and one (1) count of Criminal Conspiracy in the Fourth Degree to commit the Crime of Robbery in the Second Degree.

36. Defendants, including GEIST, GASTON, DISIMONE, FARRELL, REYES, BATISTA, SMITH, GREEN, TALLYERAND, OKTROVA, WARKENTHEIN and John or Jane Doe 1 through 10, intentionally provided false information to the Bronx County District Attorney's Office, knowing that Plaintiff never acted in concert, assisted, or planned to commit any crimes, or participated in any overt acts in furtherance of any conspiracy with the over 65 indicted co-Defendants.
37. Defendants, including GEIST, GASTON, DISIMONE, FARRELL, REYES, BATISTA, SMITH, GREEN, TALLYERAND, OKTROVA, WARKENTHEIN and John or Jane Doe 1 through 10, intentionally provided false information to the Bronx County District Attorney's Office, knowing that Plaintiff had never used or gone by the name Mutar Mohammed.

38. At no point were the Defendants, including GEIST, GASTON, DISIMONE, FARRELL, REYES, BATISTA, SMITH, GREEN, TALLYERAND, OKTROVA, WARKENTHEIN and John or Jane Doe 1 through 10, ever told by any witnesses that Mr. Muhamad committed an crimes or violations of the law or that he had acted in concert, assisted, planned or participated in any overt acts in furtherance of any conspiracies in the indictment.
39. Defendants, including GEIST, GASTON, DISIMONE, FARRELL, REYES, BATISTA, SMITH, GREEN, TALLYERAND, OKTROVA, WARKENTHEIN and John or Jane Doe 1 through 10, testified before the grand jury convened to investigate the charges against Plaintiff and offered false, fraudulent and misleading testimony to ensure that he was indicted, including that Plaintiff conspired, with over 65 indicted co-Defendants from May 7, 2009 to May 5, 2014, to commit the crimes of Murder in the Second Degree, Criminal Sale of a Controlled Substance in the Second Degree, Criminal Possession of a Controlled Substance in the Second Degree, and Robbery in the Second Degree.
40. At no time, between May 7, 2009 and May 5, 2014 did Plaintiff participate in any conspiracy to sell narcotics.
41. At no time, between May 7, 2009 and May 5, 2014 did Plaintiff assist in or participate in any overt acts in furtherance of any conspiracy to sell narcotics.
42. At no time, between May 7, 2009 and May 5, 2014 did Plaintiff assist in or participate in a conspiracy to commit murder.
43. At no time, between May 7, 2009 and May 5, 2014 did Plaintiff assist in or participate in any overt acts in furtherance of any conspiracy to commit murder.

44. At no time, between May 7, 2009 and May 5, 2014 did Plaintiff assist in or participate in a conspiracy to commit a Robbery.
45. At no time, between May 7, 2009 and May 5, 2014 did Plaintiff assist in or participate in any overt acts in furtherance of a conspiracy to commit a Robbery.
46. Defendants, including GEIST, GASTON, DISIMONE, FARRELL, REYES, BATISTA, SMITH, GREEN, TALLYERAND, OKTROVA, WARKENTHEIN and John or Jane Doe 1 through 10, failed to disclose, misrepresented and provided false material details, regarding the presence of probable cause to the Bronx District Attorney's office.
47. Plaintiff was arraigned and formally charged with three (3) counts of Criminal Conspiracy in the First Degree, three (3) counts of Criminal Conspiracy in the Second Degree, one (1) count of Criminal Conspiracy in the Third Degree and one (1) count of Criminal Conspiracy in the Fourth Degree.
48. Plaintiff was unable to meet his bail conditions and was remanded to custody at Riker's Island, where he remained in custody for 11 months, until he was released on bail in March of 2015.
49. During Plaintiff's incarceration on Riker's Island he was forcibly subject to multiple strip searched with cavity inspections.
50. Plaintiff was forced to return to court to face the false charges against him several times over the course of four (4) years before all charges were dismissed on October 2, 2018.
51. At no point were the Defendants including GEIST, GASTON, DISIMONE, FARRELL, REYES, BATISTA, SMITH, GREEN, TALLYERAND, OKTROVA,

WARKENTHEIN and John or Jane Doe 1 through 10, ever told by any witnesses that Plaintiff committed any crime or violation of the law.

52. During all of the events described, the Defendants, including GEIST, GASTON, DISIMONE, FARRELL, REYES, BATISTA, SMITH, GREEN, TALLYERAND, OKTROVA, WARKENTHEIN and John or Jane Doe 1 through 10, acted maliciously and with intent to injure Plaintiff.
53. At all times relevant hereto, Defendants, including GEIST, GASTON, DISIMONE, FARRELL, REYES, BATISTA, SMITH, GREEN, TALLYERAND, OKTROVA, WARKENTHEIN and John or Jane Doe 1 through 10, were involved in the decision to detain, arrest and strike Plaintiff without any legal basis or justification or failed to intervene when they observed others detaining, arresting and striking Plaintiff without any legal basis or justification.
54. As a direct and proximate result of the acts of the Defendants, Plaintiff suffered the following injuries and damages: violations of his rights pursuant to the Fourth and Fourteenth Amendment of the United States Constitution, violations of New York State law, physical injury, physical pain and suffering, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.

FIRST CAUSE OF ACTION

False Arrest and False Imprisonment Under
New York State Law

55. The above paragraphs are here incorporated by reference as though fully set forth.
56. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.

57. Plaintiff was conscious of his confinement.
58. Plaintiff did not consent to his confinement.
59. Plaintiff's arrest and false imprisonment was not otherwise privileged.
60. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
61. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
62. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

63. The above paragraphs are here incorporated by reference as though fully set forth.
64. The Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.
65. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.
66. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.
67. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

68. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

THIRD CAUSE OF ACTION

Assault and Battery Under
New York State Law

69. The above paragraphs are here incorporated by reference as though fully set forth.
70. Defendants made plaintiff fear for his physical well-being and safety and placed him in apprehension of immediate harmful and/or offensive touching.
71. Defendants engaged in and subjected plaintiff to immediate harmful and/or offensive touching and battered him without his consent.
72. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
73. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.
74. The vicious attack on the Plaintiff and leaving without rendering medical aid would be sufficient to award punitive damages against Defendants.
75. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FOURTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 Against Individual Defendants

76. The above paragraphs are here incorporated by reference as though fully set forth.

77. The Defendants violated Plaintiff's rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiff's consent.
78. Defendants engaged in and subjected Plaintiff to immediate harmful and/or offensive touching and battered him without his consent.
79. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.
80. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FIFTH CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

81. The above paragraphs are here incorporated by reference as though fully set forth.
82. Defendants initiated the prosecution against Plaintiff.
83. Defendants Lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.
84. Defendants acted with malice.
85. The prosecution was terminated in Plaintiff's favor when the criminal charge was dismissed and sealed.
86. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
87. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.
88. By reason of the above, the amount of damages sought on this cause of action

exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SIXTH CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 Against Individual Defendants

89. The above paragraphs are here incorporated by reference as though fully set forth.

90. Defendants, acting under color of state law, initiated the prosecution against Plaintiff.

91. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.

92. Defendants acted with malice.

93. The prosecution was terminated in Plaintiff's favor when the charges were dismissed and sealed.

94. Accordingly, Defendants violated Plaintiff's Fourth Amendment rights.

95. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

96. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SEVENTH CAUSE OF ACTION

Malicious Abuse of Process Under
New York State Law

97. The above paragraphs are here incorporated by reference as though fully set forth.

98. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.

99. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
100. Defendants intended to inflict substantial harm upon Plaintiff.
101. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.
102. Defendants City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
103. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
104. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

EIGHTH CAUSE OF ACTION

Malicious Abuse of Process Under
42 U.S.C. § 1983 Against Individual Defendants

105. The above paragraphs are here incorporated by reference as though fully set forth.
106. Defendants, acting under color of state law, arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.
107. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiff, especially with the absence of an cognizable probable cause.
108. Defendants intended to inflict substantial harm upon Plaintiff.
109. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.

110. Defendant's actions deprived Plaintiff of his right to be free from illegal searches and seizures, as well as his right to not be deprived of his liberty without due process of law.

111. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

112. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

NINTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

113. The above paragraphs are here incorporated by reference as though fully set forth.

114. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

115. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

116. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

117. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

TENTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

118. The above paragraphs are here incorporated by reference as though fully set forth.
119. Those Defendants that were present but did not actively participate in the
aforementioned unlawful conduct observed such conduct, had an opportunity to
prevent such conduct, had a duty to intervene and prevent such conduct and failed to
intervene.
120. Accordingly, the Defendants who failed to intervene violated the Fourth and
Fourteenth Amendments.
121. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the
damages hereinbefore alleged.
122. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the
damages hereinbefore alleged.
123. By reason of the above, the amount of damages sought on this cause of action
exceeds the jurisdictional limits of all lower Courts which would otherwise have
jurisdiction.

ELEVENTH CAUSE OF ACTION

Negligent Hiring, Retention and Supervision Under
New York State Law

124. The above paragraphs are here incorporated by reference as though fully set forth.
125. Defendant City owed a duty of care to Plaintiff to adequately hire, retain and
supervise its employee Defendants.
126. Defendant City breached that duty of care.

127. Defendant City placed Defendants in a position where they could inflict foreseeable harm.
128. Defendant City knew or should have known of its employee Defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiff.
129. Defendant City failed to take reasonable measures in hiring, retaining and supervising its employee Defendants that would have prevented the aforesaid injuries to Plaintiff.
130. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
131. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

TWELFTH CAUSE OF ACTION
Municipal "*Monell*" Liability Under
42 U.S.C. § 1983 Against Defendant City

132. The above paragraphs are here incorporated by reference as though fully set forth.
133. Defendant City maintained a policy, custom or practice that caused Plaintiff to be deprived of his Constitutional right to free from illegal searches and seizures.
134. Defendant City's illegal practice is so consistent and widespread that it constitutes a custom or usage of which a supervising policy maker must have been aware of.
135. Defendant City and its policymakers failed to provide adequate training or supervision to subordinates to such an extent that it is tantamount to their deliberate

indifference towards the rights of those who come into contact with Defendant City's employees.

136. Defendant City's employees engaged in such egregious and flagrant violations of Plaintiff's Constitutional rights that the need for enhanced supervision and training is obvious and therefore tantamount to a display of deliberate indifference by Defendant City and its policymakers towards the rights of individuals who come into contact with defendant City's employees.

137. Defendant City's conduct violated Plaintiff's rights under the Fourth and Fourteenth Amendments to the United States Constitution.

138. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

139. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- j) On the Tenth Cause of Action, in sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) Awarding Plaintiff punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
- n) Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 28 U.S.C. § 1988; together with the costs and disbursements of this action

Dated: Bayside, New York
December 30, 2019



SIM & DEPAOLA, LLP
By: Peter Sim, Esq.
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ATTORNEY VERIFICATION

I, **Peter Sim**, an attorney admitted to practice in the courts of New York State, state that I am a partner of the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by myself and not by Plaintiff, is because Plaintiff resides outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
December 30, 2019



PETER SIM, ESQ.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

YADULLAHI MUHAMMAD which the NYPD misspelled MUTAR MOHAMMED,

Plaintiff,

-against-

CITY OF NEW YORK, individually and officially in their capacities as New York City Police Officers, MITCHELL GEIST, EDWARD GASTON, ANTHONY DISMONE, THOMAS FARRELL, RAMON REYES, ANTHONY BATISTA, SHELDON SMITH, RICHARD GREEN, DANIEL TALLEYRAND, AMADEO OKTROVA, THOMAS WARKENTHEIN and JOHN or JANE DOE 1-10,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SIM & DEPAOLA, LLP

BY: PETER SIM

Attorney for Plaintiff(s)

42-40 Bell Boulevard

Bayside, NY 11361

Tel. (718) 281-0400

Fax (718) 631-2700

To: CORPORATION COUNSEL OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for